

26SMCV01605 26SMCV01605

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Case Number: 26SMCV01605 Hearing Date: August 12, 2026 Dept: N

TENTATIVE RULING

Defendant Stor-It Self Storage, LLC's Motion to Quash Service of the Summons and Complaint is GRANTED.

Defendant Stor-It Self Storage, LLC to give notice.

REASONING

Code of Civil Procedure section 418.10, subdivision (a)(1), provides that a defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over it. Defendant Stor-It Self Storage, LLC ("Defendant") moves to quash service of the summons and complaint upon it on the ground that Plaintiff Mohammad Shalchian ("Plaintiff") failed to serve Defendant in a code-complaint manner. Plaintiff has not filed an opposition to the present motion. While the moving party generally bears the initial burden of proof on its motion, and lack of opposition will not automatically entitle the moving party to prevail on its motion, a party's failure to file an opposition can be considered a concession that the motion is meritorious. (See *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.) Moreover, "[w]hen a defendant challenges the court's personal jurisdiction on the ground of improper service of process," as Defendant does here, "the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413, quotation marks omitted.)

The proof of service filed on April 8, 2026, states that Defendant was served at 4068 Del Rey Ave in Marina Del Rey by personal service on Jacob Thomson, agent of process, who was served by Fereshteh Manochenri, who is not a registered California process server. As to serving a corporate entity like Defendant, Code of Civil Procedure section 416.10, subdivisions (a) and (b), state that "[a] summons may be served on a corporation by delivering a copy of the summons and the complaint . . . [t]o the person designated as agent for service of a process" or "[t]o the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process." As to substituted service upon a corporation, Code of Civil Procedure section 415.20, subdivision (a), provides as follows:

In lieu of personal delivery of a copy of the summons and complaint to the person to be served as specified in [Code of Civil Procedure section 416.10, et seq.], a summons may be served by leaving a copy of the summons and complaint during usual office hours in his or her office or, if no physical address is known, at his or her usual mailing address, other than a United States Postal Service post office box, with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. When service is effected by leaving a copy of the summons and complaint at a mailing address, it shall be left with a person at least 18 years of age, who shall be informed of the contents thereof. Service of a

summons in this manner is deemed complete on the 10th day after the mailing.

Code of Civil Procedure section 416.90 also provides that “[a] summons may be served on a person not otherwise specified in this article by delivering a copy of the summons and of the complaint to such person or to a person authorized by him to receive service of process.”

Defendant provides the declaration of Diana Toscano, Operations Manager for S.I. Management, which manages the storage location at issue in this action, and she states that the entity correctly associated with the location is Stor-It Properties, LLC, neither she nor S.I. Management has authorized anyone to accept service of process on behalf of Stor-It Properties, LLC other than its designated registered agent for service of process, and she is not aware of any individual named Jacob Thomson being employed by or affiliated with the subject storage location or authorized to accept service on behalf of the entity. (Mot., Toscano Decl. ¶¶ 1-6.)

Insofar as Defendant contends that the individual who served the summons and complaint is Plaintiff’s spouse (Mot., p. 2, ll. 16-20), the Court lacks any evidence to this effect. However, the evidence sufficiently shows that Jacob Thomson is not an individual authorized to accept service, as he is not known to be either the agent for service of process, as stated in the proof of service, an officer of the corporation, or someone else authorized to accept service on behalf of Defendant. This alone is sufficient to show that the Court lacks jurisdiction over Defendant, as it was not properly served. Accordingly, Defendant Stor-It Self Storage, LLC’s Motion to Quash Service of the Summons and Complaint is GRANTED.